

25VECV02874 25VECV02874

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25VECV02874 Hearing Date: July 30, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

WENDELL GAYARES, an
individual; MILAGROS GAYARES, an individual,

Plaintiffs,

vs.

HRATCH DZHANOYAN, an individual; A&A
WEST COAST DISTRIBUTION INC., a California Corporation; and DOES 1 through
100, inclusive,

Defendants.

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CASE NO.: 25VECV02874

ORDER

DENYING PLAINTIFFS' MOTION FOR

LEAVE TO FILE A FIRST AMENDED COMPLAINT

I.

BACKGROUND

This case arises from a motor vehicle collision between Wendell Gayares ("Wendell") and Milagros Gayares ("Milagros") (jointly "Plaintiffs") and Defendants Hratch Dzhanoyan and A & A West Coast Distribution Inc. (jointly "Defendants"). Plaintiffs allege that on November 11, 2024, Wendell was driving a Kia Forte with Milagros as a passenger when Defendant Hratch Dzhanoyan rear-ended their vehicle as Wendell signaled to change lanes. (See Compl. at 5.) Plaintiffs further allege Defendant Dzhanoyan failed to maintain a safe speed and following distance, causing Plaintiffs to sustain injuries. (See *id.* at 5.)

Plaintiffs now seeks leave of this Court to file a first amended complaint.

II.

PROCEDURAL

HISTORY

On May 22, 2025, Plaintiffs filed their Complaint, alleging (1) Motor Vehicle; and (2) General Negligence.

On February 18, 2026, Defendants filed their Answer.

On May 14, 2026, the Court granted the parties' joint stipulation to continue trial.

On June 29, 2026, Plaintiffs filed the instant Motion for Leave to File a First Amended Complaint.

On July 15, 2026, Defendants filed their Opposition.

On July 23, 2026, Plaintiffs filed their Reply.

III.

LEGAL STANDARD

Code of Civil

Procedure § 473(a)[1] provides: "The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Proc. § 473(a)(1); see also Code Civ. Proc. § 576.)

The court has broad discretion to permit amendments to pleadings, and "the court's discretion will usually be exercised liberally to permit amendment of the pleadings." (Howard

v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.)” “The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (Id.) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend.” (Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530.) Prejudice includes “delay in trial, loss of critical evidence, or added costs of preparation.” (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448.)”

A motion for leave to amend a pleading must comply with the procedural requirements of Rules of Court, rule 3.1324, under which the motion must include (1) a copy of the proposed and numbered amendment, (2) specifications by reference to pages and lines the allegations that would be deleted and added, and (3) a declaration specifying the effect, necessity and propriety of the amendments, date of discovery and reasons for delay. (See Rules of Court, rule 3.1324(a), (b).)

IV.

ANALYSIS

Plaintiffs seek

leave to file a first amended complaint to add allegations supporting a claim for punitive damages against Defendants. Plaintiffs argue that, through further investigation and discovery, they learned additional facts regarding the collision, including that Defendant Dzhanoyan was driving at an unsafe speed, failed to maintain a safe following distance, rear-ended Plaintiffs' vehicle, and was operating the vehicle with an expired driver's license. (See Mot. at 3:7-11.) Plaintiffs further argue Defendant A & A West Coast Distribution Inc. knew or should have known of Dzhanoyan's unfitness to operate the vehicle, supporting allegations that Defendants acted with conscious disregard for Plaintiffs' safety under Civil Code § 3294. (See id. at 3:14-18.) Plaintiffs contend amendment is proper because trial is not set until February 24, 2027, and Defendants will have an opportunity to conduct discovery and respond to the amended pleading. (See id. at 8:5-8.)

Defendants

oppose the motion, arguing Plaintiffs failed to comply with California Rules of Court, rule 3.1324 because Plaintiffs' counsel's declaration does not explain when the facts supporting the proposed amendment were discovered, why the amendment was not sought earlier, the effect of the amendment, or why the

amendment is necessary. (See Opp. at 2:21-24, 3:6-8.) Defendants further argue Plaintiffs failed to comply with rule 3.1324(a)(2)-(3) because the proposed amended pleading does not identify the allegations to be deleted or added, or specify where those allegations are located within the pleading. (See id. at 3:27-28, 4:1-8.) Moreover, Defendants contend the proposed amendments fail to state a viable claim for negligent entrustment or punitive damages because the allegations are conclusory and insufficient to establish malice, oppression, or fraud under Civil Code § 3294. (See id. at 9:9-28.) Finally, Defendants argue they will suffer prejudice if leave to amend is granted because discovery has been conducted based on the existing pleadings, and they would incur additional costs and burdens in conducting discovery, revising their litigation and settlement strategy, preparing defenses against what they characterize as unsupported claims, and retaining new counsel. (See id. at 13:1-10, 13:24-28.)

In reply, Plaintiffs argue California law strongly favors granting leave to amend and that Defendants have failed to demonstrate actual prejudice sufficient to justify denial of the motion. (See Reply at 2:19-27.) Plaintiffs contend the proposed amendment merely clarifies and supplements existing allegations and liability theories arising from the same collision, does not introduce new facts or claims unrelated to the action, and will not delay trial or otherwise prejudice Defendants because discovery remains ongoing. (See id. at 3:3-18, 4:1-10.) Plaintiffs further argue Defendants' challenges to the sufficiency of the proposed allegations go to the merits of the amended pleading rather than whether leave to amend should be granted. (See id. at 4:25-27.) Finally, Plaintiffs contend any procedural deficiencies in the moving papers are curable and do not warrant denial of leave to amend. (See id. at 5:2-5.)

After reviewing Plaintiffs' Motion and the Declaration of Christopher C. Lee, the Court finds Plaintiff has failed to comply with Rule of Court, rule 3.1324(a) and (b). First, Mr. Lee's declaration does not "specify ... [w]hen the facts giving rise to the amended allegations were discovered; and the reasons why the request for amendment was not made earlier." (Rules of Court, Rule 3.1324(b)(3)-(4).) Because rule 3.1324(b) states a separately filed declaration "must accompany [a] motion" to amend a pleading before trial and "must specify" these facts, it is not discretionary. Here, the timing of Plaintiffs' discovery that Defendant Dzhanyan was allegedly operating the vehicle with an expired driver's license is especially significant, as that allegation appears to be the primary new

factual basis for the proposed punitive damages claim and is therefore central to the Court's prejudice analysis. Further, Plaintiffs' motion fails to comply with Rules of Court, Rule 3.1324(a)(2)-(3), which requires moving parties to "State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located" and "State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located." Defendants' arguments concerning the legal sufficiency of the proposed punitive damages and negligent entrustment allegations go to the merits of the proposed amended pleading, which are not presently before the Court.

Accordingly, the Motion is procedurally defective and the Court DENIES it.

V.

CONCLUSION

Based on the foregoing, the Court DENIES Plaintiffs' Motion for Leave to File a First Amended Complaint.

IT IS SO ORDERED.

DATED:
July 30, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references are to California codes unless stated otherwise.